

Court No. - 21

Case :- WRIT - C No. - 59235 of 2012

Petitioner :- M/S Shree Bankey Behari Concast Pvt. Ltd. And Others

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Amrit Lal Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Shri A.L. Yadav, learned counsel for the respondent nos.2 to 5, the case is directed to be put-up as fresh on 22nd November, 2012 so as to enable him to obtain instructions in the matter.

Order Date :- 9.11.2012

Ajeet...

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Petitioner :- M/S Shree Bankey Behari Concast Pvt. Ltd. And Others

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Amrit Lal Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On oral prayer made by Sri Mayank Agarwal, learned counsel for the petitioners, he is permitted to implead the U.P. Electricity Regulatory Commission as Party-Respondent No. 6 in the Writ Petition. He undertakes to serve copy of the Writ Petition on the learned counsel for the U.P. Electricity Regulatory Commission within three days.

Sri Mayank Agarwal, learned counsel for the petitioners states that the New Tariff for the financial year 2012-13 (hereinafter also referred to as "the New Tariff") was got published by the U.P. Power Corporation Ltd. in the news-paper on 23rd October, 2012. However, the New Tariff has been made effective w.e.f. 1st October, 2012. Copy of the Public Notice has been filed as Annexure -3 to the Writ Petition.

Sri Mayank Agarwal submits that it was not open to the U.P. Power Corporation Ltd. to give retrospective effect to the New Tariff. He states that the petitioners are not disputing the validity of the New Tariff as determined by the U.P. Electricity Regulatory Commission, and they are aggrieved only on account of retrospective effect being given to the New Tariff w.e.f. 1st October, 2012.

Sri Agarwal refers to the provisions of Clause (2) of Regulation 139 of the Uttar Pradesh Electricity Regulatory Commission (Conduct of Business) Regulations, 2004. It is pointed out under Clause (2) of Regulation 139 of the said Regulations, the tariffs " shall come into force after seven days from the last date of such publication of the tariffs".

Sri Agarwal refers the provisions of sub-section (7) of Section 24 of the U.P. Electricity Reforms Act, 1999 and submits that in view of the said provision, the tariffs " shall come into force after

seven days from the last date of such publication" of the tariffs.

Sri Agarwal further refers to Clause 3.8 of the U.P. Electricity Supply Code, 2005. It is submitted that sub-clause (a) of Clause 3.8 again provides that tariffs "shall take effect only after seven days from the date of publication" of the tariffs.

It is further submitted that in view of sub-section (6) of Section 62 of the Electricity Act, 2003, it is not open to licensee to recover the tariff in excess of that determined under Section 62.

In the present case, the submission proceeds, the publication was done on 23rd October, 2012, and therefore, New Tariff could come into effect on 31st October, 2012. The New Tariff could not be given effect to retrospectively w.e.f. 1st October, 2012.

Matter requires consideration.

Issue notice pending admission.

Notice on behalf of the Respondent Nos. 1 to 5 has been accepted by Sri Amrit Lal Yadav, learned counsel for the said respondents.

Notice on behalf of the Respondent No. 6, as mentioned above, will be served upon the learned counsel for the said respondent by Sri Mayank Agarwal, learned counsel for the petitioners within three days.

Therefore, no notice need be sent to the Respondents.

Counter Affidavit on behalf of the Respondents may be filed within three weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List case on 8th January, 2013.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions by Sri Mayank Agarwal, learned counsel for the petitioners and Sri Amrit Lal Yadav, learned counsel for the Respondent Nos. 1 to 5, it is provided that the electricity supply in regard to the respective electricity connection of each of the petitioners will not be disconnected

pursuant to the respective Electricity Bill in respect of such petitioner, impugned in the present Writ Petition, subject to the following conditions:

(i) With effect from 1st November, 2012, each of the petitioners will make the payment of the Electricity Bills at the rates as per the New Tariff.

(ii) For the month of October, 2012, each of the petitioners will make the payment at the rates as per the Tariff applicable prior to the enforcement of the New Tariff. Such payment will be made by each of the petitioners by 10th December, 2012.

(iii) Any amount included in each of the impugned Electricity Bills for the period prior to the month of October, 2012, will be paid by the respective petitioner by 10th December, 2012.

(iv) As regards the difference between the amount for the month of October, 2012 as determined at the rates as per the New Tariff and the amount for the said month (i.e. October, 2012) as determined at the rates as per the Tariff operative prior to the enforcement of the New Tariff, each of the petitioners will give respective Bank Guarantee for the payment of such difference. Such Bank Guarantee will be provided by 10th December, 2012.

In case of failure on the part of any of the petitioners in complying with any of the above conditions, this interim order will stand automatically vacated.

The payments made and the Bank Guarantees given, as per the above directions, will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

It is further provided that in the event of the dismissal of the Writ Petition or the vacation of the above interim order, whichever is earlier, each of the petitioners will be liable to pay respective surcharge, interest and other charges, if any, on account of late payment, and the concerned respondents will be entitled to recover the said amounts from the respective Bank Guarantees and also by any other mode permissible in law, if necessary.

Order Date :- 22.11.2012

A. Pt. Singh

Court No. - 21

Case :- WRIT - C No. - 59235 of 2012

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Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Amrit Lal Yadav,S.C.

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

List again showing the name of Shri Baleshwar Chaturvedi, as one of the counsel for the respondents.

Order Date :- 10.4.2014

Ps.

Court No. - 21

Case :- WRIT - C No. - 59235 of 2012

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Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Amrit Lal Yadav,S.C.

Hon'ble Krishna Murari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

Case called out in the revised list. No one has appeared on behalf of the petitioner to press the writ petition.

It is accordingly dismissed. Interim order, if any, stands vacated.

Order Date :- 25.4.2014

Dcs